

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF KANSAS
AT WICHITA, KANSAS

BRIAN NORRIS,	)	
	)	
Plaintiff,	)	
vs.	)	Case No.
	)	
THE PHOENIX INSURANCE COMPANY,	)	
	)	
Defendant.	)	
_____	)	

COMPLAINT

COMES NOW the Plaintiff, by and through counsel Jeff Wilson and Dustin L. DeVaughn of DeVaughn James Injury Lawyers, and for Plaintiff's claims against the Defendant, alleges and states:

1. Plaintiff is a citizen and resident of Kansas.
2. Defendant the Phoenix Insurance Company is a stock fire and casualty insurance company formed under the laws of Connecticut and with its principal place of business in Connecticut but authorized to conduct business in the State of Kansas. It may be served through the Kansas Insurance Commissioner – KS Insurance Department at 1300 SW Arrowhead, Topeka, Kansas 66612-1678.
3. This Court has jurisdiction over the persons and subject matter.
4. Venue is proper in the Wichita division of the Kansas District Court of the Federal District Court.
5. This action is brought pursuant to 28 U.S.C. Section 1332(a) on the basis of diversity of citizenship. The matter is in excess of the sum of Seventy-Five Thousand Dollars (\$75,000.00) exclusive of interest and costs.

6. At all times relevant herein, plaintiff was insured under an automobile liability policy with defendant, policy number H-810-3036P718-PHX-18, that contained uninsured motorist benefits in the amount of \$1,000,000.00. As such, the available uninsured motorist coverage for plaintiff should be \$1,000,000.00.
7. On or about October 24, 2018, in Derby, Sedgwick County, Kansas, an uninsured motorist who was negligently driving at a high rate of speed when he struck plaintiff's vehicle.
8. Specifically, the uninsured motorist was careless and negligent as follows:
 - a. Excessive speed;
 - b. Inattentive operation of a motor vehicle;
 - c. Failure to drive with reasonable care;
 - d. Failure to take evasive action.
9. Plaintiff provided defendant with a time-limited settlement demand on or about May 17, 2021 on this clear liability collision with objective injuries and damages. As of June 21, 2021, defendant has failed and refused to not only tender its uninsured motorist limits, but has failed to provide any settlement offer.
10. Since the defendant failed to pay without just cause or excuse, pursuant to K.S.A. 40-256, defendant is liable for plaintiff's attorney fees.
11. The policies of insurance available to plaintiff and this motor vehicle are policies given to insure property in this state against loss by fire, tornado, lightning or hail, and as such, the plaintiffs are allowed mandatory attorney fees pursuant to K.S.A. 40-908.

12. As a result of the negligence of the uninsured motorist, plaintiff sustained personal injuries. Plaintiffs' damages include past medical expenses, future medical expenses, past and future economic damages and past and future non-economic damages including pain, suffering and mental anguish.

WHEREFORE, Plaintiffs requests judgment against Defendant for an amount in an amount in excess of SEVENTY-FIVE THOUSAND (\$75,000.00), together with the costs incurred herein; attorney fees under K.S.A. 40-256 and K.S.A. 40-908; pre-judgment interest and for such other and any further relief this Court deems fair, just and equitable.

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DEMAND FOR JURY TRIAL

Plaintiff Brian Norris demands a Trial by a jury in this matter.

DESIGNATION FOR PLACE OF TRIAL

Plaintiff Brian Norris designates Wichita, Kansas as the place for trial of this matter.

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